

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331 of the Code of Criminal
Procedure Act No.15 of 1979.

**Court of Appeal Case No.
CA/HCC/0029/2023
High Court of Ampara
Case No. HC/1828/2017**

Weerakoon Mudiyanseelage Pradeep
Kumara Weerakoon alias Victe Aiya

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Ershan Ariyaratnam for the Appellant.
Maheshika Silva, DSG for the Respondent.**

ARGUED ON : **24/07/2026**

DECIDED ON : **18/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General for committing one count of Kidnapping punishable under Section 354 and one count of grave sexual abuse punishable under Section 365B (2) (b) of the Penal Code on Marappuli Gedera Ushan Govinda on or around the date of 12.11.2016.

The trial commenced on 26/11/2019. After leading all the necessary witnesses, the prosecution had closed the case. The Learned High Court Judge had called for the defence and the Appellant opted to give evidence from the witness box and called two witnesses on his behalf.

The Learned High Court Judge after considering the evidence presented by both parties, convicted the Appellant as follows:

For the 1st count the Appellant was sentenced to 2 years rigorous imprisonment with a fine of Rs.5,000/-. In default 01-month simple imprisonment was imposed.

For the 2nd count the Appellant was sentenced to 08 years rigorous imprisonment with a fine of Rs.8,000/-. In default 01-month simple imprisonment was imposed.

In addition, a compensation of Rs.75,000/- was ordered with a default sentence of 03 months simple imprisonment.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. At the time of the argument, he was connected via the Zoom platform from prison.

Before the commencement of arguments, as a preliminary issue, the Learned Counsel for the Appellant informed this court that the evidence given by the victim did not disclose the act which could be brought within Section 365B (2) (b) of the Penal Code.

The Victim, PW1 in his evidence stated that on the date of incident, while he was in the midst of running an errand for his mother, the Appellant had stopped the victim's bicycle and dragged the victim to his house on the pretext of giving the victim some Guava fruits. The victim was taken to his house through the back door despite his resistance. Inside the house, the Appellant had lowered his trouser and touched his penis before trying to kiss his penis. At this point, the victim had managed to kick the Appellant's chest area and escape. The Appellant had threatened to kill the victim if he disclosed this incident to anyone.

The victim had informed about the incident to his mother, PW2, after which a complaint was lodged at the Central Camp Police Station. The victim had not disclosed about any other act being performed on him during that time except the act of the Appellant touching his penis. As per the indictment, the Appellant was charged only for touching the penis of the victim. The victim

giving evidence reiterated that the Appellant only touched and attempted to kiss his penis.

According to the prosecution, the victim was 13 years old when he encountered this unfortunate incident. When giving evidence, he was 16 years old and a more matured child.

The Appellant had given evidence from the witness box and denied the charge.

The Learned Deputy Solicitor General, strenuously argued that the act committed on the victim by the Appellant falls within the ambit of grave sexual abuse. The learned Counsel for the Appellant, citing several judgements delivered by this court, reiterated that the the act said to have been committed on the victim by the Appellant does not fall under the scope of grave sexual abuse. He pointed out that the prosecution has elicited only the act mentioned in the indictment and nothing else.

In criminal trials, the charge would serve as the most basic foundation. The charge would inform the accused regarding the nature of the allegation levelled against him. thus, the charge must accurately identify the act committed by the accused as well as the law alleged to have been violated by him. Moreover, the relevant details regarding the alleged offence must be clearly mentioned in the charge.

The Supreme Court in **The Queen v Liyanage and Others** (1963) 65 NLR 337, stated that:

“... on a trial upon Indictment, by the very essence of the pre-trial procedure, an accused person becomes aware of all the evidence relied upon by the Crown in support of the Indictment and which the Crown intends to place against him at the trial. He is entitled in law to know such

evidence before he is called upon to plead to the Indictment. It is a right of his, inherent in that procedure.”

In **Hattuwan Pedige Sugath Karunaratne v Hon. Attorney General** SC Appeal 32 of 2020 dated 20.10.2020 his Lordship Aluvihare, J. held that:

“..... No doubt the duty of a State Counsel is to present the prosecution in an effective manner to the best of their ability in furtherance of securing a conviction, if the evidence can support the charge. The Prosecutor, however, is an officer of the court and their role is to assist the court to dispense justice. Thus, it is not for a Prosecutor to ensure a conviction at any cost but to see that the truth elicited, and justice is meted out”.

In the case of **Democratic Socialist Republic of Sri Lanka v. Andravas Patabendi Ganendra De Vas Gunawardane and Others**, S.C. TAB No. 01A-01F/2017 decided on 08.08.2024 it was held:

“This pronouncement also indicates that ‘equality of arms’ is not a one-way street where only the prosecution is bound to disclose what they intend to produce, but also the accused too must make a disclosure on his part. The entitlement of an accused to a fair trial conducted before a competent Court as a fundamental right was recognised by Article 13(3) of the 1978 Constitution.

With the conferment of the entitlement to a fair trial as a fundamental right, the Legislature, in enacting Section 162 of the Code of Criminal Procedure Act, ensured that an accused who is tried upon an indictment is entitled to not only to the statements made by himself along with that of the witnesses who are listed in the indictment but also to copies of preliminary inquiry proceedings, inquest proceedings, reports, sketches, notes of

identification parade, statements made under Section 127 by the accused and any witness listed in the indictment along with copies of such portions the notes, scene observations made during investigations by a police officer. In relation to trial before a High Court at Bar, Section 450(7), reaffirms the duty on the prosecution to provide such material and ensures that the accused person could also make a request to Court and thereby ensuring the fundamental right conferred by Article 13(4)."

In the case of **Rowe and Davis v the United Kingdom** [2000] ECHR, The European Court of Human Rights held:

"... in a criminal case, that both prosecution and defence must be given the opportunity to have knowledge of and comment on the observations filed and the evidence adduced by the other party."

In the case of **Edwards and Lewis v. United Kingdom** (2004) 40 EHRR 593 it was held that:

"It is in any event a fundamental aspect of the right to a fair trial that criminal proceedings, including the elements of such proceedings which relate to procedure, should be adversarial and that there should be equality of arms between the prosecution and defence. The right to an adversarial trial means, in a criminal case, that both prosecution and defence must be given the opportunity to have knowledge of and comment on the observations filed and the evidence adduced by the other party (ibid., § 51). In addition, Article 6 § 1 requires that the prosecution authorities should disclose to the defence all material evidence in their possession for or against the accused (ibid.)."

In this case, it would be necessary to discuss the relevant sections of the Penal Code in order to determine the most applicable Section in this scenario.

Section 365 B (1) states:

Grave Sexual Abuse is committed by any person who, for sexual gratification does any act by the use of his genitals or any other part of the human body or any instrument on any orifice or part of the body of any other person being an act which does not amount to rape under section 363...

In the case of **Jayathilaka v. Attorney-General** [2008] 2 Sri L.R. 117, rape and grave sexual abuse was distinguished as follows:

“In a charge of rape, the prosecution must prove penetration, in a charge of grave sexual abuse prosecution is not required to prove penetration. The ingredients in a charge of rape are different from the ingredients that must be proved in a charge of grave sexual abuse.”

Further, in the case of **Yoga v. Attorney-General** [2010] 2 Sri L.R. 162 it was held that:

“To establish a charge under section 365 (B) of the Penal Code the prosecution must establish that the alleged act was done with the intention of having sexual gratification. This aspect must be proved beyond reasonable doubt.”

In **Mahalakotuwa v. The Attorney General** [2011] 2 B.L.R 406 D.S.C Lecamwasam, J. held that:

“On a plain reading of the above section it is clear, that the section envisaged a grave situation which falls short of rape. It cannot be a mere ‘Touch’. It has to be much more serious than a touch and to come within the ambit of ‘Grave Sexual Abuse’ it must be of a very high degree, so

serious and grave in nature that it can only fall short of Rape, but must surpass situations expected in section 345,365 and 365A”.

It has been alleged in the charge that the Appellant had touched the penis of the victim with the objective of obtaining sexual gratification. However, the victim’s evidence only establishes the act of the Appellant touching the penis of the victim. Therefore, as per the plain reading of Section 365B (1) of the Penal Code, I hold that the act which had allegedly been committed on the victim would not constitute an offence under Section 365B (1) of the Penal Code in this case. Therefore, it would be essential to consider the appropriate section of the Penal Code pertaining to this case.

Section 345 of Penal Code as amended states:

“Whoever, by assault or use of criminal force, sexually harasses another person, or by the use of words or actions, causes sexual annoyance or harassment to such other person commits the offence of sexual harassment and shall on conviction be punished with imprisonment of either description for a term which may extend to five years or with fine or with both and may also be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person.”

EXPLANATION

1. Unwelcome sexual advances by words or action used by a person in authority, to a working place or any other place, shall constitute the offence of sexual harassment.
2. For the purposes of this section an assault may include any act that does not amount to rape under section 363 or grave sexual abuse under section 365B.
3. "injuries" includes psychological or mental trauma.

As per the facts of this case, the Appellant's act of forcefully taking the victim into his authority and intentionally using force on the victim by touching the victim's penis, constitutes sexual harassment. Accordingly, the Appellant has committed an offence under Section 345 of the Penal Code and not under Section 365B (1) of the Penal Code as amended.

In **Mahalakotuwa v. The Attorney General** (Supra) the court further held that:

"Assuming but without conceding, that the act committed by the appellant falls within both sections 345 and 365B or alternatively if it is uncertain as to which precise section of the two it falls under, then he should be convicted under section 345 and not 365B. According to Maxwell on Interpretation of Statutes 12th edition page 239 Lord Esher M.R. had held in Tuck and Sons v. Priester (1887 (19) QBD 629 at 638)if there are two reasonable constructions, we must give the more lenient one"

In the case of **Bandula v. Almeida and Others** [1995] 1 Sri LR 334 it was held:

"it needs to be mentioned at the outset, that it is clear that a statute which has the effect of encroaching on the rights of the citizen, whether as regards person or property, must be strictly construed."

In the case of **Sebastian Fernando v Katana Multi -Purpose Co-operative Society Ltd and Others** (1990) 1 SLR 342 it was held that:

"Statutes which encroach upon the rights of the citizen have to be "strictly" construed: they should be interpreted, if possible, to respect such rights, and if there is any ambiguity, the construction which is in favour of the freedom of the individual should be adopted. Statutes which impose pecuniary burdens or penalties are subject to the same rule. If there are two reasonable constructions, one of which will avoid the penalty, that construction must be preferred."

In the case of **Wickramasinghe v Attorney General and Another** (2010) 1 SLR 141 it was held that:

“Assuming that there are two different interpretations of the words in the Bail Act, is it reasonable, sensible or justifiable to keep a suspect or accused on remand indefinitely without being prosecuted? I think not. For these reasons I think that courts will have to interpret the law giving a meaningful interpretation to the intention of the legislature.”

It is the view of this court that the Learned High Court Judge, in this case, had not adequately evaluated the ingredients of Sections 365B and 345 of the Penal Code as amended in order to ascertain the most suitable charge to be framed against the Appellant. It is evident that if such an adequate and correct analysis was made, the Appellant would have been sentenced under Section 345 of the Penal Code.

In **Mahalakotuwa v. The Attorney General** (Supra) the court further held that:

“In a case of this nature when the facts clearly show that the accused cannot brought under 365B (2) b, learned judges should not hesitate to use their prudence in deciding whether a particular set of facts constitute the offence contained in the indictment or not. If not, without mechanically passing the sentence on the indictment already filed they must have the audacity to act under 177 or 178 of the CPC and convict the accused accordingly for a different offence.”

As observed above, the evidence adduced by the prosecution does not adequately establish the act upon which the conviction delivered by the Learned High Court Judge of Ampara dates 21/10/2022 stands. Thereby, I set aside the said conviction and sentence and substitute it with a conviction under Section 345 of the Penal Code as amended, and impose three years rigorous imprisonment with a fine of Rs. 5000/- with a default sentence of 03 months simple imprisonment.

Further, the Appellant is ordered to pay a sum of Rs. 100,000/- to PW1 as compensation with a default sentence of 01-year simple imprisonment.

Taking into consideration the circumstances of this case, I order the sentence to take effect from the date of conviction i.e. from 21.10.2022.

Subject to the above variations, this appeal is dismissed.

The Registrar is directed to send this judgment to the High Court of Ampara along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL